

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3345

By: Williams

AS INTRODUCED

An Act relating to inmate assessment and evaluations; amending 43A O.S. 2021, Section 3-704, which relates to the assessment and evaluation of inmates; providing risk, mental health and substance abuse screenings for arrested persons; requiring review of screenings by approved personnel; clarifying procedures regarding the admissibility of certain information and screening results; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43A O.S. 2021, Section 3-704, is amended to read as follows:

Section 3-704. After ~~an initial appearance~~ arrest, a person accused of a ~~felony~~ criminal offense may submit to ~~an~~ approved risk, mental health and substance abuse ~~assessment and evaluation~~ screenings which shall be administered and ~~scored~~ reviewed by assessment personnel ~~certified~~ approved by the Department of Mental Health and Substance Abuse Services. Any person lacking sufficient skills to comprehend or otherwise participate in the ~~risk, mental health and substance abuse assessment and evaluation~~ screening

1 process shall have appropriate assistance. The court, district
2 attorney, arrested person and counsel for the arrested person shall
3 have access to the results of the ~~risk, mental health and substance~~
4 ~~abuse assessment and evaluation~~ completed screening. The Any
5 information gathered or the results of ~~the risk, mental health and~~
6 ~~substance abuse assessment and evaluation~~ any screening shall not be
7 admissible as evidence in ~~the~~ a criminal case matter unless
8 specifically waived by the defendant or for purposes of determining
9 sentencing and diversion options for a defendant who has pled guilty
10 and punishment is to be determined at the discretion of the court.
11 The court and the district attorney shall consider the results of
12 the risk, mental health and substance abuse ~~assessment and~~
13 ~~evaluation~~ screening to determine sentencing and diversion options
14 for the person.

15 SECTION 2. This act shall become effective November 1, 2026.

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